
MURABAHA FINANCING AGREEMENT
CONTRACT REF: MYB-ISL-2026-0892
DATE: 15 APRIL 2026

PARTIES

This Murabaha Financing Agreement ("Agreement") is entered into between:

Bank: Maybank Islamic Berhad, a licensed Islamic financial institution incorporated in Malaysia under the Companies Act 2016, having its registered office at Menara Maybank, 100 Jalan Tun Perak, 50050 Kuala Lumpur, Malaysia ("the Bank")

Customer: Bina Teguh Sdn Bhd, a company incorporated under the laws of Malaysia (Company No. 202001034812), having its registered address at No. 12, Jalan Industri 3, Taman Perindustrian Subang, 40150 Shah Alam, Selangor ("the Customer")

CLAUSE 1 – ASSET DESCRIPTION

The Bank agrees to purchase and resell to the Customer the following specifically identified asset ("the Asset"):

Asset: Liebherr LTM 1100-4.2 Mobile Crane
Serial No.: LTM-2025-MK-00471
Condition: New
Supplier: Liebherr Malaysia Sdn Bhd (Co. No. 198701008821)
Delivery: Ex-works Pulau Indah Industrial Terminal, Selangor

The Asset is a permissible tangible good under Shariah. It is fully identified, existing, and deliverable at the time of this Agreement. No haram element is present in the nature or use of the Asset.

CLAUSE 2 – COST PRICE

The Bank has purchased the Asset from the Supplier for a total consideration of RM 3,200,000 (Ringgit Malaysia Three Million Two Hundred Thousand Only), being the full and final Cost Price inclusive of all acquisition, import, and delivery charges. This Cost Price is fixed and fully disclosed to the Customer.

No additional costs, charges, or fees are embedded in or deferred from this Cost Price.

CLAUSE 3 – PROFIT MARGIN

The Bank's profit for this transaction is fixed at RM 576,000 (Ringgit Malaysia Five Hundred Seventy-Six Thousand Only), representing a flat profit margin of 18% on the Cost Price, agreed and locked at the time of execution of this Agreement.

The profit is not linked to any benchmark rate, index, or market variable. The profit shall remain fixed and unchanged for the entire tenure of this Agreement regardless of market conditions, regulatory changes, or any other event.

CLAUSE 4 – CONTRACT PRICE

The Contract Price (being the total amount payable by the Customer) is RM 3,776,000 (Ringgit Malaysia Three Million Seven Hundred Seventy-Six Thousand Only), comprising:

Cost Price:	RM 3,200,000
Bank's Profit:	RM 576,000
Contract Price:	RM 3,776,000

The Contract Price is final and shall not increase under any circumstance. Once agreed, the price relates entirely to the Asset and not to any time-based factor.

CLAUSE 5 – OWNERSHIP AND RISK TRANSFER

The Bank confirms that it has acquired title and ownership of the Asset from the Supplier prior to the execution of this Agreement. The risk of the Asset during the period of the Bank's ownership was borne entirely by the Bank.

Title and ownership of the Asset shall transfer to the Customer upon the Customer's execution of this Agreement and acceptance of the Asset, which shall be evidenced by a signed Delivery and Acceptance Form. Title transfer is unconditional and is not contingent upon any payment.

CLAUSE 6 – PAYMENT TERMS

The Contract Price of RM 3,776,000 shall be paid in 36 equal monthly installments of RM 104,888.89 each, commencing on 15 May 2026 and on the 15th day of each subsequent month until 15 April 2029.

The installment amount is fixed and shall not change throughout the tenure of this Agreement.

CLAUSE 7 – LATE PAYMENT (TA'WIDH)

In the event the Customer fails to pay any installment by its due date, the Customer shall pay ta'widh (compensation) to the Bank at a rate of 1% per annum on the overdue installment amount, for the number of days the payment is overdue. This compensation is calculated on a simple basis and does not compound.

The ta'widh rate shall not exceed the actual administrative loss and cost incurred by the Bank as a result of the late payment. Any excess collected above actual loss shall be donated to a designated charitable organisation approved by the Bank's Shariah Committee.

No further penalty, charge, or administrative fee shall be imposed on overdue amounts beyond this ta'widh.

CLAUSE 8 – EARLY SETTLEMENT AND IBRA

The Customer may settle the outstanding Contract Price in full at any time prior to the final installment date. In such event, the Bank may, at its absolute discretion and as an act of goodwill, grant a rebate (ibra) on the unearned profit portion.

The ibra is entirely at the Bank's discretion and is not contractually guaranteed. No legal entitlement to ibra exists on the part of the Customer.

CLAUSE 9 – SECURITY

As security for the Customer's obligations, the Bank shall retain a first-ranking charge over the Asset until full settlement of the Contract Price. The Customer shall cooperate in executing all documents required to perfect this charge.

CLAUSE 10 – GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by and construed in accordance with the laws of Malaysia and the principles of Shariah as determined by the Shariah Advisory Council of Bank Negara Malaysia.

Any dispute arising from this Agreement shall be referred to the Asian International Arbitration Centre (AIAC), Kuala Lumpur, for resolution in accordance with Islamic banking arbitration rules. Malaysian courts retain supervisory jurisdiction.

SIGNED by the authorised representatives of both parties.

[END OF CONTRACT]

COMPLIANCE CHEAT SHEET (for demo reference – not part of contract):

- Clause 1: Asset fully identified, tangible, halal = PASS
- Clause 2: Cost price fixed, fully disclosed = PASS (BNM SPR 1, Sec 4.1)
- Clause 3: Profit fixed at 18%, not linked to any benchmark = PASS
- Clause 4: Contract price final, cannot increase = PASS
- Clause 5: Ownership transferred at signing, not at full payment = PASS
- Clause 6: Fixed equal installments, no variability = PASS
- Clause 7: Ta'widh structured correctly, simple not compounding = PASS
- Clause 8: Ibra discretionary, not guaranteed = PASS (AAOIFI Std 8)
- Clause 10: Malaysian law + AIAC = PASS (BNM jurisdiction requirement)